



IN CONTEXT

FOCUS

Constitutional law

BEFORE

1603 The Edo Period (of rule by the Tokugawa shogunate) begins, closing Japan to foreigners for more than 250 years.

1854 Commodore Matthew Perry intimidates Japan into allowing some US ships and consuls into Japan, paving the way for future trade.

1867 The shogun resigns in favor of Emperor Meiji, ending the Tokugawa shogunate.

AFTER

1890 A Japanese parliament, called the Diet, becomes the first elected national assembly to be created in Asia.

1946 After Japan's catastrophic intervention and defeat in WWII, Emperor Hirohito reissues the Charter Oath and states that he is not a living god.

EVIL CUSTOMS OF THE PAST SHALL BE BROKEN OFF

THE CHARTER OATH (1868)

During the long Edo Period, Japan's feudal society was ruled by a dynastic series of shoguns (military dictators). It was an era of economic growth and stability, but strict laws kept Japan closed to all foreigners. By the mid-19th century, many Japanese, resentful of the rigid feudal system and influenced by Western ideas, called for the ultra-conservative regime to modernize.

In the face of political agitation and armed rebellions, the shogun's grip on power faded; he resigned in

1867. Emperor Meiji came to power soon after, and the Meiji Restoration ushered in an era of modernization.

Signaling a new direction

In 1868, statesmen Yuri Kimimasa, Fukuoka Takachika, and Kido Takayoshi drafted the Charter Oath, paving the way for the modernizing of Japan under a parliamentary constitution. The Oath's five articles laid out the key aims: to set up deliberative assemblies; break down feudal systems; allow every citizen the right to pursue "his own calling"; leave behind harmful old customs; and open up Japan to international ideas and trade.

The Oath is seen as the first constitution of modern Japan and as pivotal as similar charters were for other nations. Japan was at last able to move toward a more open society with an elected parliament. ■



Emperor Meiji proclaimed the Charter Oath, also known as the Imperial Oath, at his coronation in 1868. Aged 15, he was eager to "stand upon a similar footing with the most enlightened nations."

See also: Magna Carta 66–71 ■ The US Constitution and Bill of Rights 110–117
■ The Declaration of the Rights of Man 118–119 ■ The Russian Constitution 190–191